

April 12, 2026

Representative Andrew Gray
Chair of the House Judiciary Committee
State Capitol Room 118
Juneau, AK 99801

Representative Chuck Kopp
Vice Chair of the House Judiciary Committee
State Capitol Room 204
Juneau, AK 99801

Representative Andi Story
State Capitol Room 403
Juneau, AK 99801

RE: Ad Trade Letter in Opposition to Alaska HB 367

Dear Chair Gray, Vice Chair Kopp, and Representative Story:

On behalf of the advertising industry, we respectfully oppose HB 357 in its current form, and we provide this letter to express our non-exhaustive list of concerns about this legislation.¹ We and the companies we represent, many of whom do substantial business in Alaska, strongly believe consumers deserve meaningful privacy protections supported by reasonable laws and industry policies. As currently drafted, HB 357 is significantly out-of-step with other state omnibus privacy laws. We ask the House Judiciary Committee to harmonize the bill with the consensus approach to data privacy adopted across several states, such as Nebraska and Oklahoma.²

If enacted, HB 357 would make Alaska's approach to privacy an outlier in ways that would harm consumers and businesses of all sizes. For example, SB 357's data minimization standards are a clear outlier among state omnibus privacy laws and diverge sharply from the prevailing framework.³ By departing so significantly from established norms, the bill could cast doubt on the permissibility of routine data processing that underpins consumer benefits and everyday economic activity. Furthermore, the bill's proposed requirement for data recipients to provide their contact information to the business that originally collected personal information from a consumer does not account for the speed and efficiency of the modern digital economy.⁴ These provisions threaten to stall commerce and delay or impede benefits of data processing that Alaskans desire and expect.

Instead of proposing to enact novel or untested privacy mandates, we recommend that the Alaska legislature focus its efforts on harmonizing its privacy law with the approach to privacy in other states. A patchwork of differing privacy standards across the states would create significant costs for businesses and consumers alike. Efforts to harmonize state privacy

¹ Alaska HB 357 (34th Leg.), located [here](#) (hereinafter, "HB 357").

² See Neb. Rev. Stat. § 87-1101 et. seq.; Oklahoma SB 546 (2025-2026 Sess.) (effective Jan. 1, 2027).

³ AB 357 at Sec. 45.48.805.

⁴ *Id.* at Sec. 45.48.810.

legislation with existing privacy laws are critical to minimizing costs of compliance and fostering similar privacy rights for consumers no matter where they live.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for nearly 20 percent of total U.S. gross domestic product ("GDP") in 2024.⁵ By one estimate, approximately 16.4% of Alaska jobs in 2024 were related to the ad-subsidized Internet, a share projected to increase to 17.9% by 2029.⁶ Our group has more than a decade's worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with the Committee further on the points we discuss in this letter.

* * *

Thank you in advance for your consideration of this letter.

Sincerely,

Christopher Oswald
EVP for Law, Ethics & Govt. Relations
Association of National Advertisers
202-296-1883

Alison Pepper
EVP, Government Relations & Sustainability
American Association of Advertising Agencies, 4As
202-355-4564

Clark Rector
Executive VP–Government Affairs
American Advertising Federation
202-898-0089

Lou Mastria
CEO
Digital Advertising Alliance
347-770-0322

CC: Members of the Alaska House Judiciary Committee

Mike Signorelli, Venable LLP
Allie Monticollo, Venable LLP
Matthew Stern, Venable LLP

⁵ S&P Global, THE ECONOMIC IMPACT OF ADVERTISING ON THE US ECONOMY, 2024-2029 at 4 (Aug. 2025), located at https://theadcoalition.com/wp-content/uploads/2025/08/TAC_SP-Global-Final-Report_August-2025.pdf.

⁶ *Id.* at 15-16.